2214

Executive Order.

ALASKAN RAILROAD TOWNSITE REGULATIONS.

Under and pursuant to the provisions of the Act of Congress, approved March 12, 1914 (38 Stat., 305), entitled "An Act to authorize the President of the United States to locate, construct and operate railroads in the Territory of Alaska and for other purposes", it is hereby ordered that the administration of that portion of said Act relating to the withdrawal, location, and disposition of townsites shall be in accordance with the following regulations and provisions, to wit:

Regulations.

RESERVATIONS.

The Alaska Engineering Commission will file with the Secretary of the Interior, when deemed necessary, its recommendations for the reservation of such areas as in its opinion may be needed for townsite purposes. The Secretary of the Interior will thereupon transmit such recommendations to the President with his objections thereto or concurrence therewith. If approved by the President, the reservation will be made by Executive Order.

SURVEY.

When in the opinion of the President the public interests require a survey of any such reservation, the Secretary of the Interior shall cause to be set aside such portions for railroad purposes as may be selected by the Alaskan Engineering Commission, and cause the remainder, or a part thereof, to be surveyed into urban or suburban blocks and lots of suitable size, and into reservations for parks, schools, and other public purposes and for Government use. Highways should be laid out, where practicable, along all shore lines, and sufficient land for dock and wharf purposes along such shore lines should be reserved in such places as there is any apparent necessity therefor. The plats of such survey will be prepared in triplicate, one for the General Land Office to be on tracing linen, one for the local land office, and one for the Recorder of the proper recording district. The survey will be made under the supervision of the Commissioner of the General Land Office and the plats will be approved by him and by the Chairman of the Alaskan Engineering Commission.

PUBLIC SALE.

The unreserved lots will be offered at public outcry to the highest bidder at such time and place, and after such publication of notice, if any, as the Secretary of the Interior may direct, and he may appoint or detail some suitable person as Superintendent of Sale to supervise the same, and may fix his compensation and require him to give sufficient bond.

SUPERINTENDENT'S AUTHORITY.

Under the supervision of the Secretary of the Interior, the Superintendent of the Sale will be, and he is hereby, authorized to make all appraisements of lots and at any time to reappraise any lot which in his judgment is not appraised at the proper amount, or to fix a minimum price for any lot below which it may not be sold, and he may reject any and all bids for any lot and at any time suspend, adjourn, or postpone the sale of any lot or lots to such time and place as he may deem proper.

MANNER.

Bids may be made either in person or by agent, but not by mail nor at any time or place other than the time and place when the lots are offered for

sale hereunder, and any person may purchase any number of lots for which he is the highest bidder. Bidders will not be required to show any qualifications as to age, citizenship, or otherwise. If any successful bidder fails to make the payment and file the application and other papers at the time and in the manner hereinafter required, the lot awarded to him may be reoffered for sale, and his right thereto will be forfeited. Nothing herein will prevent the transfer by deed of the interests secured by the purchase and the partial payment for the lot, but the assignee will acquire no greater right than that of the original purchaser, and the final entry and patent will issue to the original purchaser when all payments are made.

TERMS.

No lot will be sold for less than $25.00, and no bid exceeding that amount will be accepted unless made in multiples of five dollars; the minimum of $25.00 on each lot sold for less than $75.00 must be paid in cash within the time hereinafter specified, and if the price bid is $75.00 or more, one third of the bid price must be paid in cash within said specified time; the remainder of the purchase price will be divided into five equal annual installments, payable in one, two, three, four, and five years, respectively, from the date of the register's certificate of sale, and no final certificate of entry will be issued until the expiration of said five years and until payment has been made in full for the lot, and no patent will be issued thereon during said period. The successful bidder will be given by the Superintendent of Sale a memorandum certificate for identification purposes, showing name and address of bidder, lot, and amount of bid, and the bidder must file it with the Superintendent of Sale before the close of the next succeeding sale day, or the next business day if bid is accepted on last sale day, together with his application to purchase the lot properly filled, signed, and acknowledged before any officer authorized to administer oaths and using an official seal, and accompanied by the cash payment required by these regulations, all on the forms attached hereto, respectively, and hereby approved and made a part of these regulations.

The Superintendent of Sale will issue a memorandum receipt to the bidder for the money paid, describing the lot purchased, and he will as soon thereafter as possible deposit with the receiver of the proper local land office the money received, and file with its officers the papers deposited with him by said bidder, together with his certificate as to successful bidder. Thereupon, if no objection appears, the register will issue his certificate of sale in duplicate and transmit the duplicate copy to said bidder.

If it be deemed advisable the Commissioner of the General Land Office may direct the receiver of public moneys of the proper district to attend sales herein provided for, in which event the cash payment required shall be paid to said receiver, who will issue his official receipt therefor in lieu of the memorandum receipt of the Superintendent of sale.

CONDITIONS AND FORFEITURES.

If any lot or lots sold or any part thereof shall be used for the purpose of manufacturing, selling, or otherwise disposing of intoxicating liquors as a beverage, or for gambling, prostitution, or any unlawful purpose before final payment is made, and during a period of five years from the date of register's certificate of sale, or if the purchaser shall fail during said period to comply with any and all regulations and requirements which the Secretary of the Interior, in his discretion may make or authorize to be made, for the improvement of streets, sidewalks, and alleys, promotion of sanitation and fire protection in the townsite, all rights of the applicant under his purchase of said lot or lots shall terminate and a forfeiture thereof and of the payments theretofore made thereon may be declared by the Secretary

of the Interior, and his finding of fact thereon shall be final. If any person who has made partial payment on the lot purchased by him fails to make any succeeding payment required under these regulations at the date such payment becomes due, the money deposited by such person for such lot will be forfeited, and the lot, after forfeiture is declared, will be subject to disposition as provided herein. Lots remaining unsold at the close of sale, or thereafter declared forfeited for nonpayment of any part of the purchase price under the terms of the sale, will be subject to future disposition at public sale at such time and place as may thereafter be provided.

WARNING.

All persons are warned against forming any combination or agreement which will prevent any lot from selling advantageously, or which will in any way hinder or embarrass the sale, and all persons so offending will be prosecuted under section 2373 of the Revised Statutes of the United States, which reads as follows:

> Every person who, before or at the time of the public sale of any of the lands of the United States, bargains, contracts, or agrees, or attempts to bargain, contract, or agree, with any other person, that the last-named person shall not bid upon or purchase the land so offered for sale, or any parcel thereof, or who by intimidation or unfair management hinders or prevents, or attempts to hinder or prevent, any person from bidding upon or purchasing any tract of land so offered for sale, shall be fined not more than one thousand dollars or imprisoned not more than two years, or both.

WOODROW WILSON

THE WHITE HOUSE,
19 June, 1915.

[No. 2214.]

Serial No. ----------

Receipt No. --------

Application to purchase town lot.

(To be executed in duplicate)

DEPARTMENT OF THE INTERIOR,

UNITED STATES LAND OFFICE,

----------, Alaska.

I, ----------, post office address ----------, having been declared the successful bidder for Lot No. ----------, Block No.------, in the townsite of ----------, Alaska, as delineated and designated on the approved plat thereof, containing ---------- square feet, do hereby apply to purchase said lot, subject to all the regulations governing the sale thereof, and agree to pay therefor the amount bid by me, viz: ---------- dollars ($----------), on the following terms, to wit: one-third cash, which is tendered herewith, and the balance in five equal annual installments, payable in one, two, three, four and five years, respectively, from the date register's certificate of sale issues hereunder; upon failure to pay any installment on or before the day the same becomes due, all rights under this application, together with the payments theretofore made, may be forfeited by the Secretary of the Interior.

I further agree that if the said lot, or any part thereof, shall be used for the purpose of manufacturing, selling or otherwise disposing of intoxicating liquors as a beverage, or for gambling, prostitution, or any unlawful purpose, at any time during a period of five years from the date of register's certificate of sale, and prior to the issuance of certificate of final entry, or

if, at any time during said period, I, or my successors in interest under this application, shall fail to comply with any regulation or requirement which the Secretary of the Interior, in his discretion, shall make or authorize to be made, for the improvement of streets, sidewalks and alleys, promotion of sanitation, and fire protection within said townsite, then all rights under this application shall terminate and a forfeiture thereof, together with the payments theretofore made, may be declared by the Secretary of the Interior, whose finding of fact shall be final.

(Sign here, full Christian name)

I hereby certify that the foregoing application and agreement was signed and acknowledged before me this ---------- day of ----------, 19---, at ----------, ----------.

(Official designation of officer)

(NOTE—No sum less than twenty-five dollars (25.00) will be received as the first cash payment, and if one-third the amount bid is less than that sum, proper modification should be made in the above terms of sale relating to payment.)

Certificate as to successful bidder.

----------, Alaska,
----------, 19----.

This is to certify that ----------, post office address ----------, ----------, has been declared the successful bidder for Lot No. ------, Block No. ------, in the townsite of ----------, Alaska, and is entitled to purchase said lot. The amount of his bid was ----------dollars ($--------), on which there has been paid to the undersigned to apply as cash payment the sum of ---------- dollars ($--------).

(Superintendent of Sale)

Register's certificate of sale.

U. S. Land Office, ----------, Alaska,
----------, 19----.

I hereby certify that the foregoing application has this day been allowed subject to the terms, conditions and agreements therein set forth.

(Register)

(NOTE—After application has been allowed, the duplicate copy thereof should be transmitted to the applicant.)

Memorandum certificate to successful bidder.

----------, Alaska,
----------, 19----.

This is to certify that ----------, post office address ----------, ----------, has been declared the successful bidder for Lot No. ------, Block No. ------, in the townsite of ----------, Alaska, and is entitled to purchase said lot. The amount of his bid was ----------dollars ($--------).

Superintendent of Sale.

NOTE TO BIDDER.—This memorandum certificate must be surrendered to the Superintendent of Sale before the close of the next succeeding sale day, or the next business day if bid accepted on the last sale day, together with application to purchase the lot described, accompanied by the cash payment required by the regulations governing the sale, or all rights under the bid will be forfeited.